

25NWCV03192 25NWCV03192

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SOFRIA. v. CITY OF DOWNEY, ET AL.

CASE NO.: 25NWCV03192

HEARING: Tuesday, August 4, 2026, at 9:30 AM

Cross-Defendant MAJOR LEAGUE SOFTBALL, INC.'s Demurrer is SUSTAINED with 30 days leave to amend. Cross-Defendant MAJOR LEAGUE SOFTBALL, INC.'s Request for Sanctions is DENIED.

Moving Party to give notice.

Background

On September 8, 2025, Plaintiff TIFFANY SORIA ("Plaintiff") filed this action against Defendants CITY OF DOWNEY; COUNTY OF LOS ANGELES; and DOES 1 to 50, inclusive.

Plaintiff's Complaint alleges the following causes of action:

(1) Dangerous

Condition of Public Property;

(2) Negligence/Statutory

Liability;

(3) Premises

Liability;

(4) Strict

Products Liability; and

(5) Negligent

Products Liability

On November 26, 2025, Cross-Complainant CITY OF DOWNEY

("City") filed a Cross-Complaint against Cross-Defendants BERNANRDO LANDIN;

SOUTHERN CALIFORNIA MUNICIPAL ATHELETIC FEDERATION; MAJOR LEAGUE SOFTBALL, INC.

("Softball"); and ROES 1 to 50.

On December 18, 2025, Plaintiff dismissed Defendant COUNTY

OF LOS ANGELES.

On March 16, 2026, City dismissed Cross-Defendants BERNARDO

LANDIN and SOUTHERN CALIFORNIA MUNICIPAL ATHELETIC FEDERATION.

On April 3, 2026, City filed the operative First Amended

Cross-Complaint ("FACC").

City's FACC alleges the following causes of action:

(1) Breach

of Contract;

(2) Breach

of Contract Duty to Indemnify;

(3) Breach

of Contract Duty to Defend; and

(4) Implied

Indemnity

On May 4, 2026, Softball filed the instant demurrer with

motion to strike.

Breach of Contract Claims

“The standard elements of a claim for breach of contract are: ‘(1) the contract, (2) plaintiff’s performance excuse for nonperformance, (3) defendant’s breach, and (4) damage to plaintiff therefrom.’” (Wall Street Network, Ltd. v. New York Times Co. (2008) 164 Cal.App.4th 1171, 1178.)

Softball argues City fails to allege a valid written agreement between Softball and City.

On December 8, 2015, the parties entered into a written agreement (“Agreement”) wherein Softball maintained certain City-owned and operated ball fields. (FACC ¶ 10.) The parties expired on December 13, 2020. (FACC ¶ 11.)

The parties Agreement holds that “The terms, conditions and requirements of this Agreement or any part hereof, may be amended, modified, revised, supplemented or deleted only by mutual agreement of the Parties hereto expressed in writing and signed by the Parties.” (Demurrer, Ex. E § 7.10.)

City contends that while the Agreement expired, the parties continued to operate with an implied-in-fact agreement with respect to the use of the public park and operations of the Major League Softball. (FACC ¶ 11.)

An implied contract is one whose existence and terms are manifested by conduct. (Civ. Code § 1621.) “A cause of action for breach of implied contract has the same elements as does a cause of action for breach of contract, except that the promise is not expressed in words but is implied from the promisor’s conduct.” (Yari v. Producers Guild of America, Inc. (2008) 161 Cal.App.4th 172, 182.)

The Court finds City fails to adequately plead its breach of contract claims.

As a preliminary matter, the Court notes, in a demurrer proceeding, the defects must be apparent on the face of the pleading or via proper judicial notice. (Donabedian v. Mercury Ins. Co. (2004) 116 Cal.App.4th 968, 994.) “A demurrer tests

the pleading alone, and not on the evidence or facts alleged.” (E-Fab, Inc. v. Accountants, Inc. Servs. (2007) 153 Cal.App.4th 1308, 1315.) As such, the court assumes the truth of the complaint's properly pleaded or implied factual allegations. (Id.)

Softball is asking the Court to rely on extrinsic evidence not present in the FACC. Softball has not asked the Court to take judicial notice of any extrinsic documents either.

However, with respect to extension, a terminated contract cannot be extended or modified. (Citizens for Amending Proposition L v. City of Pomona (2018) 28 Cal.App.5th 1159, 1189.) An extension is the continuation of the same contract for a specified period. (Ibid.)

Here, City is not alleging it entered into a new implied-in-fact agreement, rather it is alleging the parties continued to operate with an implied-in-fact agreement. (FACC ¶ 11.) However, as noted above, a terminated contract cannot be extended.

Even if City alleged it entered into a new implied-in-fact contract, City's allegations are insufficient to describe what the terms of that “new” contract were.

Softball's demurrer to City's breach of contract causes of action is SUSTAINED.

Implied Indemnity

“Implied contractual indemnity is a type of equitable indemnity [citation], predicated on the indemnitor's breach of contract with the indemnitee.” (Garlock Sealing Techs., LLC v. NAK Sealing Techs. Corp. (2007) 148 Cal.App.4th 937, 968.) Implied contractual indemnity is available “when two parties in a contractual relationship were both responsible for injuring a third party.” (Prince v. Pacific Gas & Electric Co. (2009) 45 Cal.4th 1151, 1159.)

Softball argues that Plaintiff alleges she suffered injury to her left knee due to piece of metal that “broke free from the defective perimeter fence.” (Complaint ¶ 61.) Softball points to a provision in the Agreement where it states, “The City agrees to maintain in safe condition all

park fixtures such as: poles, light fixtures, light bulbs, bleachers/seating apparatus, playground equipment, chain link fencing (including but not limited to "dugout", "backstop", "out of play" and "outfield/home run" fences), home plates and pitcher's rubbers. MLS will not be held responsible to defend or indemnify the City against any claims for personal injury, death or property damage that in any way arise from or relate to (i) the condition of said park fixtures..." (Demurrer Ex. F.)

Once again, Softball is asking the Court to rely on documents not present in the FACC and has not asked the Court to take judicial notice. Moreover, Softball is asking the Court to presuppose that the metal originated from the City's chain link fence, a fact that remains in dispute. Such is invalid as a demurrer is not the appropriate procedure for determining the truth of disputed facts. (Panterra GP, Inc. v. Superior Court of Kern County (2022) 74 Cal.App.5th 697, 709.)

However, City's allegations are insufficient. City alleges that the implied contract had "the same terms and provisions as the previously executed written agreement." (FACC ¶ 11.) and "[a]s part of the implied-in-fact contract, Cross-Complainant City of Downey is informed and believes that Cross-Defendants had a duty to keep the City's ball fields in good order, condition and repair including routine inspections." (FACC ¶ 13.)

However, as noted above, City cannot allege it extended an expired contract and there are no allegations demonstrating what the terms of the supposed "implied-in-fact" contract would be. In other words, even if City had pleaded it entered into a new implied-in-fact contract, it failed to demonstrate that contract included an indemnity term or provision.

Softball's Demurrer is SUSTAINED.

Sanctions

Softball's Demurrer caption indicates it requests monetary sanctions in connection with this motion. However, Softball offered no argument as to why monetary sanctions should be imposed and as such, that request is DENIED.

Leave to

Amend

Leave to

amend must be allowed where there is a reasonable possibility of successful amendment. (Goodman v. Kennedy (1976) 18 Cal.3d 335, 348.) The burden is on the Plaintiff to show the Court that a pleading can be amended successfully. (Lewis v. Youtube, LLC (2015) 244 Cal.App.4th 118, 226.)

Under the

Court's liberal policy of granting leave to amend, the Court grants City 30 days leave to amend the FACC to fix the issues presented above.

Conclusion

Softball's Demurrer is SUSTAINED with 30 days leave to amend.